

		of whether an evidentiary hearing is required to determine whether the parties entered into an agreement to arbitrate.
8	Ascencio vs. Akbarzadeh 30-2023-01362017	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Motion to Be Relieved as Counsel</u> Counsel Lili Jalali, Esq.'s Motion to Be Relieved As Counsel – Civil for Defendant Aidin Akbarzadeh is DENIED without prejudice. This court previously continued the hearing in this matter to allow Counsel Lili Jalali, Esq. (Counsel) to supplement the previous declaration, which was deficient in that no facts were provided showing that address where Defendant Akbarzadeh was served was his current address, or his last known address and Counsel has not been able to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. Counsel did not file a supplemental declaration until the court day before this hearing and the supplemental declaration does not address the deficiencies. The court will deny the motion without prejudice to Counsel refiling the motion when Counsel is able to comply with all the requirements of the Civil Procedure Code and Rules of Court. The court clerk shall give notice of this ruling.
9	Dilawari vs. California Department of Motor Vehicles 30-2025-01536742	<u>Petition for Writ of Mandate</u> There is no full written tentative ruling at this time. The court will hear from the parties or their counsel.

10	Pillon vs. Root 30-2025-01476852	There is no full written tentative ruling at this time. The court provides the following summary tentative ruling: <u>Motion for Leave to File Cross-Complaint</u> Defendant Mark Root’s Motion for Leave to File Cross-Complaint is GRANTED. Defendant Mark Root shall file the Cross-Complaint and serve it upon all named Cross-Defendants within 30 days of this ruling. <u>Standard for Leave to File Cross-Complaint</u> Code of Civil Procedure Section 426.50 provides that A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action. (Code Civ. Proc., § 426.50.) There is a liberal policy regarding granting leave to file cross-complaints. (See <i>Align Technology, Inc. v. Bao Tran</i> (2009) 179 Cal.App.4th 949, 967; Weil & Brown, Cal. Prac. Guide, Civ. Proc. Before Trial (The Rutter Group 2022) ¶ 6:557.) If the proposed cross-complaint is permissive, a party may file a cross-complaint “at any time before the court has set a date for trial.” (Code Civ. Proc., § 428.50, subd. (b).) However, if a party fails to file a permissive cross-complaint before the date set for trial, the party “shall obtain leave of court to file any cross-complaint,” which may be granted “in the interests of justice.” (Code Civ. Proc., § 428.50(c).)
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